

VCU313248 Amezola, Carlos vs. Kawneer Company, Inc.

County: tulare

Division: Civil Law and Motion

Department: 1

Hearing date: 2026-09-17

Motion: Motion for Preliminary Approval of Class Action and PAGA Settlement

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Re: Amezola, Carlos vs. Kawneer Company, Inc.

Case No.: VCU313248

Date: September 17, 2026

Time: 8:30 A.M.

Dept. 1-The Honorable David C. Mathias

Motion: Motion for Preliminary Approval of Class Action and PAGA Settlement

Tentative Ruling: To grant the motion; to set the motion for final approval for April 29, 2027; 8:30 am; D1. CMC is off calendar.

Background Facts

The Court previously continued this matter and ordered supplemental declarations addressing the lodestar, presently incurred costs, proposed cy pres recipient, LWDA notice of settlement, and notice period.

On September 10, 2026, counsel for Plaintiff filed supplemental declarations addressing these issues.

Class Notice

The settlement agreement provides no claim form will be required of class members to participate in distributions. Only those wishing to object or opt out must file notice with the settlement administrator. Objections or opt out notices are now to be made within 60 days.

The Court regularly approves notice periods of 60 days or longer.

The class notice period, therefore, is approved.

Attorneys' Fees and Costs

Attorneys' fees of 33 1/3% of the gross settlement fund of \$565,000 or \$188,333.33 and costs not to exceed \$20,000 are sought by Plaintiff's counsel.

Counsel has utilized the percentage of common fund methodology as well as provided adequate lodestar information to evaluate the reasonableness of the fee request.

Here, Counsel Bacon indicates the firm has spent 139.7 hours on this matter at rates ranging from \$1,050 to \$500 per hour. (Supplemental Declaration of Bacon ¶21.) The Court notes that these rates are already higher than what is typically "...prevailing in the community for similar work." (PLCM Group Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.) The Court will reduce the \$1,050 rate to \$950 and the \$950 rate to \$800. As such, the adjusted lodestar as to this firm is \$103,375.

Additionally, Counsel Assassi indicates 98.9 hours incurred by the firm at rates ranging from \$800 to \$750 per hour, creating a base lodestar for the firm of \$77,585. (Supplemental Declaration of Assassi ¶4.)

As such, the adjusted combined lodestar is \$180,960. Therefore, to award the fees requested, the Court would need to apply a multiplier of 1.04. The Court regularly applies multipliers of up to 1.5 on these matters. Therefore, the fees are approved as requested.

Further, counsel indicates \$12,100.25 in costs. (Supplemental Declaration of Bacon ¶25.) The Court preliminarily approves costs not to exceed \$20,000.

Unclaimed Settlement Proceeds

The Court preliminarily approves the distribution of unclaimed settlement proceeds to CASA of Tulare County in accordance with Code of Civil Procedure section 384. (Supplemental Declaration of Bacon ¶¶8-17.)

LWDA Notice

Counsel indicates that confirmation from the LWDA of receipt of proof of submission of the proposed settlement agreement was received September 9, 2026. (Lab. Code, § 2699, subd. (s)(2).) (Supplemental Declaration of Bacon ¶7 – Ex. 2.)

Summary

Therefore, the Court grants the motion and Plaintiff's deductions from the gross settlement of \$565,000 are preliminarily approved as follows:

Preliminarily Approved Attorney Fees (33.3%):

\$188,333.33

Preliminarily Approved Attorney Costs (up to):

\$20,000.00

Preliminarily Approved Enhancement Payment to Plaintiff:

\$5,000.00

Preliminarily Approved Settlement Administrator Costs

\$20,000.00

Preliminarily Approved LWDA PAGA Payment

\$10,000.00

Preliminarily Approved Net Settlement Amount

\$326,666.67

Therefore, the Court sets the motion for final approval for April 29, 2027; 8:30 am; D1.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.